

TRP(C)/276/2019 on 5 November, 2020

Author: P. Patnaik

Bench: P. Patnaik

TRP(C) No.276 OF 2019

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Heard Mr. Samarendra Mohanty, learned counsel for the petitioner and Mr. P.K. Nayak, learned counsel for the opposite party.

The petitioner-wife has sought for transfer of C.P. No.458 of 2019 filed by O.P.-husband under section 13(i)(a) of Hindu Marriage Act, 1955 read with section 7 of Family Courts Act for the decree of divorce, from the court of learned Judge, Family Court, Cuttack to the court of learned Judge, Family Court, Sambalpur, mainly on the ground that since the petitioner-wife is staying at Sambalpur which is more than 300 Kms. away from Cuttack, it would be difficult on the part of the wife-petitioner for attending the court during the proceeding.

Learned counsel for the petitioner submits that the law is well settled that the convenience of wife is the paramount consideration which is to be given precedence for consideration of application of transfer of the case. Learned counsel further submits that the wife-petitioner is having a minor son of six years who is prosecuting his study in Class-I in St. Joseph Convent School at Sakhipara, Sambalpur and it is well nigh impossible on the part of the petitioner to leave the child at Sambalpur and to attend the court at Cuttack. Therefore, the learned counsel submits that the case of the petitioner be considered taking into consideration her plight and attending circumstances.

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Learned counsel for the opposite party, however, does

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not dispute the contentions raised in the application. He has fairly submitted on instruction that the husband of the petitioner does not have any objection if the proceeding, C.P. No. 458 of 2019 is transferred from the court of learned Judge, Family Court, Cuttack to the court of learned Judge, Family Court, Sambalpur.

Having heard learned counsel for the parties and being conscious and alive to the plight of the petitioner-wife, I am inclined to transfer the C.P. No.458 of 2019 pending in

the court of learned Judge, Family Court, Cuttack to the court of learned Judge, Family Court, Sambalpur.

The TRP(C) is disposed of accordingly. The interim order dated 12.09.2019 passed in I.A. No.307 of 2019 stands vacated.

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P. Patnaik, J.